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President of India

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Appearance

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Text

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Small

Standard

Large

Width

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Standard

Wide

Color



Automatic

Light

Dark



From Wikipedia, the free encyclopedia

For a full list of heads of state, see [List of heads of state of India](#).

For a list of presidents, see [List of presidents of India](#).

President of the Republic of India

Bhārata Gaṇarājya kē Rāṣṭrapati



[State emblem](#)



[Flag of India](#)



Incumbent

[Droupadi Murmu](#)

since 25 July 2022

[Head of state of the Republic of India](#)

[Executive branch of the Union Government](#)

[Style](#)

- - Hon'ble President (within India)^[1]
 - [Her Excellency](#) (outside India)^[1]
 - [The Honourable](#) (within the [Commonwealth](#))

Type

- [Head of state](#)
- [Supreme commander-in-chief](#)

Abbreviation POI

[Residence](#) [Rashtrapati Bhavan](#)

[Seat](#) [New Delhi](#)

[Appointer](#) [Electoral College of India](#)

<u>Term length</u>	Five years no restriction on renewal
Constituting instrument	Article 52 of the Constitution of India (1950)
Precursor	Monarch of India and his representative the Governor-General of India
Formation	26 January 1950; 76 years ago
First holder	Rajendra Prasad
Deputy	Vice President of India
Salary	₹500,000 (US\$5,200) (per month) ₹6,000,000 (US\$63,000) (annually) ^[2]
Website	presidentofindia.gov.in 

[Politics of India](#)



सत्यमेव जयते

[Constitution](#)

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	• • • <u>Government</u> • •	
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	• • • • <u>Parliament</u> • •	
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Law and judiciary

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	<u>Elections and politics</u> • •	
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Administrative divisions

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Federalism

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Foreign relations

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 India portal • Other countries
• v • t • e

The **president of India** (*ISO: Bhārata kē Rāṣṭrapati*) is the [head of state](#) of the [Republic of India](#). The president is the nominal head of the executive,^[a] the first citizen of the country, and the [supreme commander](#) of the [Indian Armed Forces](#). [Droupadi Murmu](#) is the 15th and current president, having taken office on 25 July 2022.

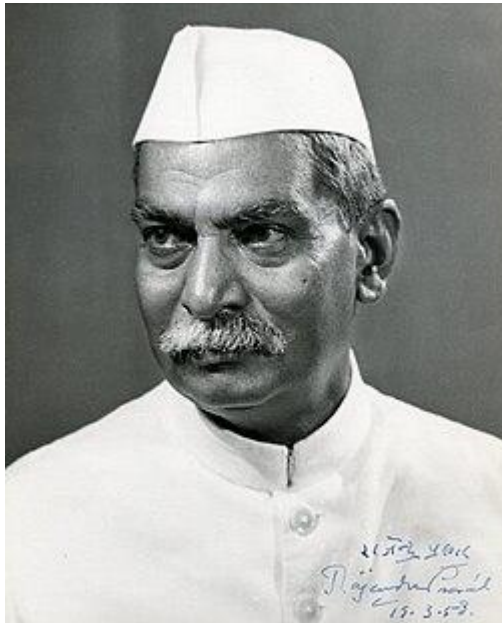
The office of president was created when [India's constitution](#) came into force and it became a republic on [26 January 1950](#). The president is [indirectly elected](#) by an [electoral college](#) comprising both houses of the [Parliament of India](#) and the [legislative assemblies](#) of each of [India's states and territories](#), who themselves are all [directly elected](#) by the citizens.

The President ranks 1st in the [Order of Precedence of India](#)^[3] as per [Article 53](#) of the [Constitution of India](#) states that the president can exercise their powers directly or by subordinate authority, though all of the executive powers vested in the president are, in practice, exercised by the [prime minister](#) heading the [Council of Ministers](#).^[4] The president is bound by the constitution to act on the [advice](#) of the council and to enforce the decrees passed by the [Supreme Court](#) under article 142.

Origin

India achieved independence from the British on [15 August 1947](#), initially as a [dominion](#) within the [Commonwealth of Nations](#) with [George VI](#) as king, represented in the country by a [governor-general](#).^[5] Following independence, the [Constituent Assembly of India](#), under the leadership of [B. R. Ambedkar](#), undertook the process of drafting a

completely new constitution for the country. The [Constitution of India](#) was eventually enacted on 26 November 1949 and came into force on 26 January 1950,^{[6]:26} making India a [republic](#).^{[7]:9} The offices of monarch and governor-general were replaced by the new office of President of India, with [Rajendra Prasad](#) as its first incumbent.^{[7]:1} India retained its Commonwealth membership per the [London Declaration](#), recognising the King as "the symbol of the free association of its independent member nations and as such the Head of the Commonwealth."^[8]



[Rajendra Prasad](#), the first President of India

The Indian constitution accords to the president the responsibility and authority to defend and protect the Constitution of India and its rule of law.^[9] Invariably, any action taken by the executive or legislature entities of the constitution shall become law only after the president's assent. The president shall not accept any actions of the executive or legislature which are unconstitutional. The president is the foremost, most empowered and prompt defender of the constitution (Article 60), who has pre-emptive power for ensuring constitutionality in the actions of the executive or legislature. The role of the judiciary in upholding the Constitution of India is the second line of defence in nullifying any unconstitutional actions of the executive and legislative entities of the Indian Union.

Powers and duties

Under the draft constitution the President occupies the same position as the King under the English Constitution. He is the head of the state but not of the Executive. He represents the Nation but does not rule the Nation. He is the symbol of the Nation. His place in the administration is that of a ceremonial device on a seal by which the nation's decisions are made known.

—[Bhimrao Ambedkar](#), as chairman of the drafting committee of the [Constituent Assembly of India](#) during various debates about the president being constitutional head of the state.^{[10][11]}

Duty

The primary duty of the president is to preserve, protect and defend the constitution and the law of India as made part of their [oath](#) (Article 60 of Indian constitution).^[9] The president is the common head of all independent constitutional entities. All their actions, [recommendations](#) ([Article 3](#), Article 111, Article 274, etc.) and supervisory powers ([Article 74\(2\)](#), Article 78C, Article 108, Article 111, etc.) over the executive and legislative entities of India shall be used in accordance to uphold the constitution.^[12] There is no bar on the actions of the president to contest in the court of law.^[13]

Legislative powers

Legislative power is constitutionally vested in the [Parliament of India](#) of which the president is the head, to facilitate the lawmaking process per the constitution (Article 78, Article 86, etc.). The president summons both the houses ([Lok Sabha](#) and [Rajya Sabha](#)) of the [parliament](#) and prorogues them. They can [dissolve the Lok Sabha](#).^{[6]:147}

The president inaugurates parliament by addressing it after the general elections and also at the beginning of the first session every year per Article 87(1). The presidential address on these occasions is generally meant to outline the new policies of the [government](#).^{[14]:145}

All [bills](#) passed by the parliament can become laws only after receiving the assent of the president per [Article 111](#). After a bill is presented to them, the president shall declare either that they assent to the Bill, or that they withhold assent from it. As a third option, they can return a bill to parliament, if it is not a [money bill](#), for reconsideration.

President may be of the view that a particular bill passed under the [legislative powers](#) of parliament is violating the constitution, they can send back the bill with their recommendation to pass the bill under the constituent powers of parliament following the [Article 368](#) procedure. When, after reconsideration, the bill is passed accordingly and presented to the president, with or without amendments, the president cannot withhold their assent from it. The president can also withhold their assent to a bill when it is initially presented to them (rather than return it to parliament) thereby exercising a [pocket veto](#) on the advice of the prime minister or council of ministers per [Article 74](#) if it is inconsistent with the constitution.^[13] Article 143 gives the president the power to consult the [supreme court](#) about the constitutional validity of an issue. The president shall assent to [constitutional amendment bills](#) without power to withhold the bills per [Article 368 \(2\)](#).

When either of the two Houses of the [Parliament of India](#) is not in session, and if the government feels the need for an immediate procedure, the president can promulgate ordinances that have the same force and effect as an act passed by parliament under its legislative powers. These are in the nature of interim or temporary legislation and their continuance is subject to parliamentary approval. Ordinances remain valid for no more than six weeks from the date the parliament is convened unless approved by it earlier.^[15] Under [Article 123](#), the president as the upholder of the constitution shall be satisfied that immediate action is mandatory as advised by the union cabinet and they are confident that the government commands majority support in the parliament needed for the passing of the ordinance into an act and parliament can be summoned to deliberate on the passing of the ordinance as soon as possible. The promulgated ordinance is treated as an act of parliament when in force and it is the responsibility of the president to withdraw the ordinance as soon as the reasons for the promulgation of the ordinance are no longer applicable. Bringing laws in the form of ordinances has become a routine matter by the government and president, but the provisions made in Article 123 are meant for mitigating unusual circumstances where immediate action is inevitable when the extant provisions of the law are inadequate. Re-promulgation of an ordinance after failing to get approval within the stipulated time of both houses of parliament is an unconstitutional act by the president.^[16] The president should not incorporate any matter in an ordinance which violates the constitution or requires an amendment to the constitution. The president should take moral responsibility when an ordinance elapses automatically or is not approved by the parliament or violates the constitution.^[17] Thus, it is believed that the POI is the [de jure](#) head of the state, whereas [PM](#) is the [de facto](#) head.